YOKOHAMA Off-Highway Tires

ATC Tires Pvt. Ltd.
(A member of alliance Group)

Factory Address : D-III / 23 & 23 A, DAHEJ INDUSTRIAL ESTATE, TALUKA - VAGRA
BHARUCH (Gujarat) - 392130 India
Tel. No.: 72111 24264 Email ID.:

PURCHASE ORDER
DELIVERY AT DAHEJ PLANT

GSTIN : 24AACCN5773A1ZR
Party Code : 2002556 P.O.No : 4400009791
To, Date : 03.05.2022
Contract No. :

NIHVA TECHNOLOGIES PVT LTD
187, G-BLOCK, 1ST FLOOR THERMAX CHOWK, MIDC
ABOVE RENAULT SHOWROOM
PUNE - 411019, Maharashtra, India
Tel. No.: 02066304033, Email ID.: sales@nihva.com

GSTIN No: 27AAECN0437H1ZM
Kind Attn: Mr. Vijay
Please supply the following items in accordance with specification & instruction given below :

Sr. No	Indent No	Item Code	Description	HSN Code / %	Unit	Qty	Over Tol.	Under Tol	Del.Date	Rate (INR)	Basic Amt(INR)	Dis.	Net Amt(INR)
1	150002895	2046247	TELESCOPIC MACHINE COVER,500(W)*3412(L)*112(H)	8487 18.00	EA	2		0.0	30.09.2022	237,500.00	475,000.00		475,000.00

Remarks: Telescopic Machine Cover
500 (W) X 3412(L) X 112 (H)
Installation Inclusive

Terms and Condition: **Total:** **2.00** **475,000.00**

Insurance : BY YOU
Delivery Mode : Road
Warranty :
Payment Terms : 100 % AGAINST PI PRIOR TO DISPATCH

Discount	:	0.00
P & F Charges	:	14,250.00
Freight/Transportation	:	2,000.00
Other Charges	:	0.00

Incoterm : Ex Works-PUNE

IGST	:	88,065.00
CGST	:	0.00
UGST/SGST	:	0.00
Total		**579,315.00**

Amount In Words : **FIVE LAKH SEVENTY NINE THOUSAND THREE HUNDRED FIFTEEN Rupees Only.**

Remarks:
Terms and Conditions:

1. PRICE -
The Price mentioned is firm and not subject to escalation for any reason whatsoever. All terms and conditions mentioned in PO supersede Supplier's Offer/ Proposal Terms.

2. ACKNOWLEDGEMENT-
Order Acknowledgement should be received within 2 Working Days from date of receipt of PO. Else it will be automatically assumed as accepted.

3. DELIVERY SCHEDULE-
Materials to be delivered must be dispatched within the stipulated time. Otherwise the same shall be liable to be rejected and supplier shall be deemed to have wrongfully failed to deliver the goods. ATC shall be entitled either to purchase goods from other sources on supplier's account. In such case supplier is liable to pay the differential amount incurred by ATC.

4. PLACE OF DELIVERY-
The Goods shall be delivered/ dispatched strictly as per instructions given in Purchase order. All materials should reach the factory stores before 3 P.M. Store will remain closed on public holidays confirmation is required before delivering.

5. TAXES -
The Price shall be exclusive of all taxes (unless otherwise agreed in the purchase order), duties and statuary levies on the purchase of Goods as applicable in India. GST - CGST, SGST or IGST will be applicable as per GST Regime.

6. GST COMPLIANCE-
In case of any failure by the supplier, any interest/ penalty/ any other amounts, loss of input credit or short payment of tax, as may be applicable or borne by the buyer, shall be indemnified and compensated by the supplier to the buyer. Further the buyer shall have the right to set off, any claim or sum owned by the supplier to the buyer against the payment due to the supplier in terms of this purchase order or any other previous orders/ agreements. The supplier shall maintain all records and reports in accordance with the applicable laws and provide copy thereof, as and when required by the buyer.

7. TERMS OF PAYMENT-
Payment will be done as per payment terms mentioned in PO Copy. This is not liable to change under any circumstances.

8. INVOICE DOCUMENTATION -
Three copies of Invoice along with your packing list / delivery challan / lorry receipt etc. shall be sent to our works. The documents as above should be sent immediately after the consignments are dispatched to facilitate the clearance of the consignment at destination and avoidance of extra expenses. Simultaneously, Fax intimation may be sent to us.

9. BILL OF MATERIAL # DESPATCH
You shall submit the detailed Bill of Material of all the items (packing slip) along with dispatch documents as part of shipping document. Responsibility and liability for all goods damaged/lost in full or in part in transit will be of the supplier, if it is due to negligence and lapse on the part of supplier in packing & forwarding.

10. INSPECTION-
You will submit detailed inspection & quality assurance plan for shop made components as well as bought out components identifying witness & hold points at various critical stages. This plan shall be reviewed and approved by M/s ATC. Any inspection request shall be made in writing to M/s ATC. Upon receipt of such written requests M/s ATC shall depute their representative within 7 working days. In event of M/s ATC not being able to depute their representative, M/s ATC shall send a written inspection waiver/dispatch clearance.

11. MISTAKES IN INFORMATION -
a. The Vendor shall be responsible for any discrepancies, errors or omissions in the drawings or any other documents provided by them.
b. The Vendor shall carry out at their own expenses any alternations or remedial work necessitated by such reasons.

12. GUARANTEE -
All supplied materials will follow a Guarantee period as mentioned in Purchase Order Copy.

13. AFTER SALES SERVICE-
You shall be responsible for providing prompt & efficient after sales service to M/s ATC. In addition to that terms mentioned in Purchase Order copy shall also be applicable.

14. FORCE MAJEURE -
Neither Party hereto shall be considered in the breach hereof if its failure to perform or observe any or all of the terms, conditions and stipulations contained beyond 30 days shall be caused to extent by war, warlike operations act of state, flood,

earthquake, strike, lockout, riots or civil commotion, provided, however such occurrence or the consequence thereof, which have not continued beyond 30 days shall not be regarded as a state of force majeure for the purpose of this clause. The party claiming occurrence of any event under force majeure shall give immediate notice to other in the event of the existence of any force majeure circumstances and the delivery shall extended without penalty by a maximum period of 90 days or a period mutually agreed upon, beyond which the buyer reserves the right to cancel the order and obtain refund of all advance payments along with interest thereon at 12% per annum.

15. REMOVAL OF REJECTED GOODS-
Within 15 Days from receipt of intimation from the buyer of his refusal to accept goods, supplier shall remove the rejected goods from the buyer's factory at his own cost. The buyer shall not be responsible for any loss or deterioration of the rejected goods. The supplier may have to pay reasonable storage charges for such rejected goods for the period exceeding 15 days as aforesaid. The Company in turn may also dispatch rejected goods on to-pay basis if the same is not collected by supplier.

16. GOVERNMENTAL, SAFETY AND ENVIRONMENT REGULATIONS #
Purchased materials supplied by supplier should satisfy all governmental and safety constraints on toxic, environmental, hazardous materials and governmental considerations applicable in the country of manufacturing and sales. The supplier shall keep the buyer indemnified for any action taken by any government/ local authorities on this account. Any action against the buyer will be informed to the supplier and will be defended at the cost and responsibility of the supplier.

17. TRANSPORT RELATED MANDATORY HSE COMPLIANCES #
Any vehicle entering ATC premises should follow below EHS (Environment, Health & Safety) related compliances
a) All persons (Driver & Helper) should be minimum 18 years of age supported by valid Identity Proof.
b) Vehicle Driver should have valid Driving License.
c) Vehicle should have fitness certificate from RTO (Regional Transport Office).
d) Vehicles should have basic necessary features in proper working condition such as Headlight, Taillight, Brakes, Handbrakes, Indicators, Horn & Reverse Horn.
e) Vehicle should have valid Registration Certificate, Insurance & PUC certificate.
f) Vehicle moving from one end to other end inside the plant should be in covered position.
g) Drivers and helper should not smoke inside the plant.

18. CONFIDENTIALITY #
Each party acknowledges that its respective performance of its obligations hereunder may require that it have access to confidential business and proprietary information of the other. Each party agrees on behalf of itself and its officers, directors, employees and agents to use its/their best efforts to prevent either duplication or disclosure of data, plans, specifications, formulae, drawing or any other information whether business or technical, of a confidential nature, which has been furnished directly or in directly, in writing or otherwise to the other. "Confidential information" shall include such information as would be apparent to a reasonable person, familiar with the disclosing party's business and the industry in which it operates, that such information is of a confidential or proprietary nature and that maintenance of its confidentiality would likely be of commercial value to the disclosing party. "Confidential information" shall not include information that is in the public domain prior to its disclosure, becomes part of the public domain through no wrongful act of the receiving party, was in the lawful possession of the receiving party prior to its disclosure to the receiving party or was independently developed by the receiving party.

19. ARBITRATION & LAW -
Should there be any difference or dispute arise in the performance of the Contract or in relation to the Construction, Meaning and Operation or effect of this Contract or breach thereof, both the parties shall discuss the same and settle the issue amicably. If the differences and disputes cannot be so resolved, the same shall be referred to arbitration and settled in accordance with the provisions of The Arbitration and Conciliation Act, 1996. Either party may give to the other notice in writing of the existence of such questions, disputes or differences or the same shall be referred to for final determination by a single arbitrator if agreed upon, or to two arbitrators, one to be appointed by each party. The said two arbitrators shall elect and appoint a third person as Presiding Arbitrator. The award of the Arbitrator(s) shall be final and binding. The venue of arbitration shall be Mumbai.
Only the Courts at Mumbai will have jurisdiction over any matter/dispute etc pertaining to and arising out of these Purchase Order Terms.

Instructions:

(I) Kindly assure & arrange the material as per the given delivery period
(II) All orginal Documents for eg,: (Invoice Copy, LR Copy, Test certificate & IBR certificate), should be sent along with material to our factory & one scanned copy of all documents to be sent to our Mumbai office. The dispatch details of material & documents need to be

communicated to head office.
(III) Please do not dispatch the material without our confirmation. Once the material gets ready than please provide us with packing dimension details for e.g.:(Size, Height, Width, Lenght, Weight & No of packing) and contact personal name, Number & address for collecting the material

Yours Faithfully

For ATC TIRES PVT. LTD

Range :
Division :
Commissionerate :
Created By. : PRAFULKUMAR Chauhan

(Authorized Signatory)